

Smt. Chandrima Guha vs Sumit Guha on 24 September, 1993

Equivalent citations: (1994)1CALLT416(HC)

JUDGMENT

Samir Kumar Mookherjee, J.

1. Let this matter be treated as on day's list upon intimation to the learned advocates for the parties.
2. The present Revisional application arises out of an order, passed by the learned District Judge, Alipore, in Matrimonial Suit No. 217 of 1993, for divorce, mainly on the ground, as contemplated under Section 13(1)(ia) of the Hindu Marriage Act, hereinafter referred to as the Act. The connected suit was filed in the trial Court before the expiry of the requisite period of one year from the date of solemnisation of the marriage, on the ground of exceptional hardship on the part of the petitioner. The suit is at the instance of the husband against the wife and the same is proceeded by filing of an application under Section 14(1) of the Act for leave to present the petition for divorce before time. The respondent/wife in the connected suit is the Revisional petitioner before this Court.
3. In course of hearing of the Revisional application, Mr. Ghosh, learned advocate for the husband/opposite party, had handed over a copy of the application under Section 14(1) of the Act for bringing to our notice the allegations of exceptional hardship, as mentioned in Clauses A to J of Paragraph 2 thereof. In substance,- the allegations are that the wife is a upstart and ultra-modern lady, unfit for simple peace-loving middle class family; her acts and conducts resulted infliction of mental and physical agony and torture on the members of the family of the husband, with the result that on different occasions several diaries had to be lodged with police and proceeding under Section 144(2) of the Code of Criminal Procedure had to be initiated by the husband's mother; wife's father was alleged to be missing from the family for at least 25/26 years.
4. Admittedly, before grant of leave under Section 14(1) of the Act, the wife was not given any notice nor an opportunity of being heard.

In the background of the aforesaid state of facts, we have been invited to adjudicate a two-fold dispute viz., (i) whether a leave under Section 14(1) of the Act could be granted by the Court without affording an opportunity of being heard to the respondent and (ii) whether the allegation in the instant case constituted exceptional hardship within the meaning of the said section. In support of their respective contentions, the learned advocates for the contesting parties made reference to the rules of this Court, governing such proceeding, as also to different decisions of other High Courts. It was also pointed out that in view of a decision of this Court in the case of Rabindra Nath Mukerjee v. Iti Mukherjee, reported in 1991(1) C.L.J. 209, the provision of Section 14(1) of the Act should be treated as directory and not mandatory. The other principle decided therein has no application in the facts of the case.

5. We have given our anxious consideration to the materials on record as also the submissions made by the learned advocates for the parties. It is to be stated, at the very outset, that some of the vital allegations, as pleaded in the application under Section 14(1) of the Act, lack detailed particulars. Apart from that, upon a consideration of the reason in the impugned order, we find that the learned trial Judge failed to appreciate the impact of the words "exceptional hardship", as interpreted in Section 14(1) of the Act inasmuch as the factual allegations in a particular case must make out a case of extraordinary hardship of the applicant so as to entitle him to a leave under the said section. The allegations, which though tentatively sufficient for upholding a prayer for a decree for divorce, may not necessarily constitute exceptional hardship within the meaning of the said section. To allow a prayer in terms of the said section, the circumstances must be unusual. Applying the said ratio, in the instant case, we do not find that the grant of leave can be justified. The allegations in the instant case, as have been made in the application for leave, if are held to sustain the grant of leave then the very legislative purpose of allowing the matrimonial home to continue for sometime so that sufficient opportunity may become available to the couple for reapproachment and to settle up their differences and disputes would have been rendered infructuous. The learned trial Judge also, in the impugned order has not indicated the reasons for which the circumstances were found by him to be unusual or exceptional, save quoting the terms used in the statutory provision. We, therefore, do not get justification in upholding the grant of leave. The second contention, stated in the foregoing part of this order, must, therefore, be answered in favour of the wife/revisionist. In view of our finding, as above, we do not propose to enter into the merits of the other contention raised about the maintainability of an order passed without notice to the respondent. The same may be reserved for further indepth consideration on a future occasion, if the same arises.

6. The Revisional application is therefore allowed, the impugned order is set aside and the application under Section 14(1) of the Act, preferred by the husband, is rejected. Since admittedly the marriage was solemnised on 24th of September, 1992, we direct the plaint to be returned to the learned advocate for the husband/petitioner for presentation to the appropriate Court for initiation of the matrimonial suit, if so advised.

7. There will be no order as to costs.

8. Let xerox copies of this order passed today be handed over to both the learned advocates for the contesting parties on the usual terms on their undertaking to apply for and obtain urgent certified copies.

B.M. Mitra, J.

9. I agree.